

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Muhammad Abdul Hafiz

Civil Revision No. 881 of 2019

Haji Abdus Sattar
Petitioner

-versus-

Mohammad Sirazul Huq
Principal Opposite Party

Year Mohammad Siddique and others
Proforma Opposite Parties

Mr. A. Q. M. Safiullah, Advocate
for the petitioner

No one appears
for the principal opposite party

Judgment on: 23.8.2023

This Rule was issued calling upon the opposite party No. 1 to show cause as to why the impugned Judgment and Order dated 11.2.2019 passed by the learned District Judge, Chittagong in Misc. Appeal No. 17 of 2019 staying the operation of the Order dated 11.12.2018 passed by the Waqf Administrator, Bangladesh in Misc. E. C. No. 28 of 2016 should not be set aside and/ or such other or further order or orders passed as to this Court may seem fit and proper.

The predecessor of the petitioner was the owner of 48 decimals of land having R.S. Khatian Nos. 1358, 1922, 2030 and

1949, R.S Dag Nos, 481, 477, 486 and 478 and B.S. Khatian Nos. 5960 and 460 being B.S Dag Nos, 589, 590, 620, 582 and 621 within Police Station Boalkhali, Shakpura Mouza, Chittagong, that as in the said area there was no institution about religious Education and also no Mosque exists within the said area, the father and uncles of the petitioner Haji Abdus Sattar decided to establish a Mosque, Madrasha, Graveyard including a Pond and a Field and accordingly they have executed two registered Waqf Deed Nos. 5972 and 1794 dated 31.12.1981 and 29.5.1999 containing the said 48 decimals of land; that accordingly the predecessors of the petitioner with their own cost constructed a two storied building with foundation of multistoried building for the purpose of Gausia Zame Mosjid and Madrasha, Graveyard, Pond and a Field and since then the predecessor of the petitioner carried on all affairs in respect of Mosque and Madrash; that after the death of the predecessor, the petitioner has been acting as a Mutwalli of the said Gausia Zame Mosjid and Madrasha; that since establishment of Gausia Zame Mosjid and Madrasha etc. the predecessor of the petitioner and thereafter the petitioner himself was carrying on the affairs of the said Gausia Zame Mosjid and Madrasha as a sole Mutwalli; that previously after establishment of the said Gausia Zame Mosjid and Madrasha no one had taken any

responsibility of Mutwalli of the said Mosque and Madrasha and after their death the petitioner till now has been continuing as the Mutwalli of the said Gausia Zame Mosjid and Madrasha. The petitioner in course of his continuation as Mutwalli of the said Mosque and Madrasha filed Misc. E.C No. 28/2016 dated 02.10.2016 praying for enlistment of E.C Number and appointment of the petitioner as Mutwalli for enlistment of the Waqf Estate to the Waqf's Office. On receipt of the said application the Administrator of Waqf's directed the concerned Waqf's Inspector and Upazilla Assistant Commissioner (Land) for investigation in the locality and to submit the reports to the Administrator of Waqf. After investigation the Inspector and Upazilla Assistant Commissioner (Land) submitted their report stating that the petitioner has been carrying on as Mutwalli of the said Gausia Zame Mosjid and Madrasha.

The Administrator of Waqf Estate by an Order 11.12.2018 appointed the petitioner Haji Abdus Sattar as the Official Mutwalli and advised to appoint 5 (five) persons from his heirs and 4 (four) persons from the regular Musulli of the Mosque totaling 9 (nine) members Advisory Committee to help the petitioner in respect of running the affairs of the said Gausia Zame Mosjid and Madrasha Waqf Estate, Boalkhali, Chittagong.

Being aggrieved by and dissatisfied with the said Order dated 11.12.2018 passed by the Office of the Administrator of Waqf's Estate the opposite party No. 1 as Appellant filed Misc. Appeal No. 17 of 2019 before the learned District Judge, Chittagong and also filed an application for staying the operation of the Order dated 11.12.2018 passed by the Office of the Administrator of Waqf Estate.

The learned District Judge, Chittagong passed an Order dated 11.02.2019 staying operation of the order dated 11.12.2018 passed by the Office of the Administrator of Waqf Estate and hence, the appellant as petitioner moved this application under Section 115(1) of the Code of Civil Procedure before this Court and obtained this Rule.

Mr. A. Q. M. Safiullah, learned Advocate for the petitioner submits, that the impugned order having passed without any reason about the matter in issue the same cannot be sustainable in law. He further submits that the Administrator of Waqf on receipt of the application from the petitioner praying for enlistment of the said Gausia Zame Mosjid and Madrasha Waqf Estate and also for appointing him as Mutwalli, although his predecessor and he himself has been continuing as Mutwalli since establishment of the said Gausia Zame Mosjid and Madrasha in 1981 which has been

constructed on their land measuring 48 decimals and considering the above aspect, the Administrator of Waqf's appointed him as the Official Mutwalli and advised to form an Advisory Committee consisting of 9 (nine) members to help the petitioner in respect of the affairs of the work of the Mutwalli of the said Waqf's Estate and non consideration of the vital points, the Court appears to have committed an error of law resulting an erroneous decision which has occasioned a failure of justice.

No one appears on behalf of the opposite party to oppose the Rule.

Heard the learned Advocate for the petitioner and perused the record.

The learned District Judge failed to consider the effect that the Waqf's Administrator on receipt of the application for enlistment of Gausia Zame Mosjid and Madrasha in the Office of the Administrator of Waqf Estate he appointed concerned Waqf's Inspector and Upazilla Assistant Commissioner (Land) for local investigation and to submit investigation report and accordingly they have submitted the investigation reports stating that the petitioner and his predecessor are the owners of the property and they have constructed Mosjid and Madrasha for the welfare of the Local Area and since then the predecessor of the petitioner and the

petitioner himself are continuing as the Mutwalli of the said Gausia Zame Mosjid and Madrasha Waqf's Estate and without considering the same learned District Judge, Chittagong passed the impugned Order.

Considering the facts and circumstances of the case I find substance in this Rule.

In the result, the Rule is made absolute.

The impugned Judgment and Order dated 11.2.2019 passed by the learned District Judge, Chittagong in Misc. Appeal No. 17 of 2019 staying operation of the Judgment and Order dated 11.12.2018 passed by the Waqf Administrator, Bangladesh in Misc. E. C. No. 28 of 2016 is hereby set aside.

The order of stay and status-quo granted earlier by this Court is hereby vacated.

Send down the lower Court's record with a copy of this Judgment to the Courts below at once.